

23STLC03063 23STLC03063

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-09

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Case Number: 23STLC03063 Hearing Date: July 9, 2026 Dept: 25

HEARING DATE: Thurs., May 28, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Progressive

West Insurance Company v. Vo

COMP. FILED: 05-10-23

CASE NUMBER: 23STLC03063

NOTICE: OK

PROCEEDINGS: MOTION

TO SET ASIDE DEFAULT

MOVING PARTY: Defendant John Steven Vo

RESP. PARTY: None

MOTION TO

SET ASIDE DEFAULT

(Code Civ. Proc., §§ 473(b), (d))

TENTATIVE RULING:

The Court

DENIES John Steven Vo's motion to set aside the default judgment entered against him.

The Court's Judicial Assistant is to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 6, 2026 []
Late ☒ None

REPLY: None
filed as of July 6, 2026 []
Late ☒ None

ANALYSIS:

The Court previously continued this hearing to allow
John Steven Vo to file and serve a declaration in support of his motion to set
aside the default judgment against him, or to give Vo and Progressive West
Insurance Company the chance to meet to resolve the issue. Since then, neither party has filed any
document with the Court. The Court therefore
adopts its previous tentative ruling as follows:

Progressive
West Insurance Company sued John Steven Vo over a car accident. It purported to have made substituted service
on Vo when a registered server left process with "Tim Vo Co-Occupant" at Vo's
home address, and then mailed the same process to Vo. Vo failed to answer Progressive's complaint,
so Progressive obtained a default judgment against him in October 2024. Vo now moves to set aside the judgment and
the underlying default. The Court DENIES
the motion.

Vo seeks relief from the default

judgment on two alternative grounds.

Under Code of Civil Procedure section 473, subdivision (b), if a party's own mistake, inadvertence, surprise, or excusable neglect causes it to suffer a default judgment, that party can seek relief from the judgment within six months of its entry. But the default judgment against Vo was entered more than six months before he filed his motion.

Under Code of Civil Procedure section 473, subdivision

(d), a party can move at any time to set aside a void judgment. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 225–226.) A

default judgment is void if it's entered against a party who was never served with process. (*County of San Deigo v. Gorham* (2010) 186 CalApp.4th 1215, 1226.)

Because there is proof of service on Vo, and because it's signed by a registered process server, the burden is on Vo to prove that he wasn't served in order to be relieved of the default judgment against him. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.) Vo's motion papers contain his representation that he was incarcerated at the time he was purportedly served, but there is no evidence of that—not even a sworn-under-penalty-of-perjury declaration from Vo himself. Without evidence, Vo cannot meet an evidentiary burden.

The Court therefore DENIES Vo's motion.

The Court's Judicial Assistant is to give notice.